

GORSUCH, J., concurring in judgment

boils down to a “single question”: Is there “any reason to think that Congress might be better equipped” than a court to “‘weigh the costs and benefits of allowing a damages action to proceed’”? *Ibid.*; see *Ziglar v. Abbasi*, 582 U. S. 120, 136 (2017). But, respectfully, resolving that much only serves to highlight the larger remaining question: When might a court *ever* be “better equipped” than the people’s elected representatives to weigh the “costs and benefits” of creating a cause of action?

It seems to me that to ask the question is to answer it. To create a new cause of action is to assign new private rights and liabilities—a power that is in every meaningful sense an act of legislation. See *Sandoval*, 532 U. S., at 286–287; *Nestlé*, 593 U. S., at — (GORSUCH, J., concurring); *Jesner v. Arab Bank, PLC*, 584 U. S. —, — (2018) (GORSUCH, J., concurring in part and concurring in judgment). If exercising that sort of authority may once have been a “‘proper function for common-law courts’” in England, it is no longer generally appropriate “‘for federal tribunals’” in a republic where the people elect representatives to make the rules that govern them. *Sandoval*, 532 U. S., at 287. Weighing the costs and benefits of new laws is the bread and butter of legislative committees. It has no place in federal courts charged with deciding cases and controversies under existing law.

Instead of saying as much explicitly, however, the Court proceeds on to conduct a case-specific analysis. And there I confess difficulties. The plaintiff is an American citizen who argues that a federal law enforcement officer violated the Fourth Amendment in searching the curtilage of his home. Candidly, I struggle to see how this set of facts differs meaningfully from those in *Bivens* itself. To be sure, as the Court emphasizes, the episode here took place near an international border and the officer’s search focused on violations of the immigration laws. But why does that matter? The Court suggests that Fourth Amendment viola-